Sales Commission Agreement — Fixed Term (Sep–Dec 2026), Flat Revenue Rate

This Sales Commission Agreement (this “**Agreement**”) is entered into as of ____________________ (the “**Effective Date**”), by and between **MMG Global LLC**, an Arizona limited liability company d/b/a The Motivated Mind Group, with its principal place of business at 260 S Arizona Ave, Chandler, AZ 85225 (“**MMG**”), and **Jeff Gibbs** (the “**Sales Representative**”), engaged by MMG on a part-time, secondary-role basis in Business Development and Account Management for the Term (Section 2) below. MMG and the Sales Representative are each a “**Party**” and together the “**Parties**.”

> **Plain-language summary (not a substitute for the terms below):** Flat 12% commission on revenue, September 1 – December 31, 2026, on accounts MMG has approved by name. Every quote needs Bill's written sign-off on the margin before it goes to the customer; under 30% margin, commission switches to 40% of Gross Profit instead (MMG keeps 60%). This is a secondary job for Jeff — no competing work of any kind while this Agreement is active — and all MMG and customer information and materials stay confidential and MMG's property.

1. Definitions

1. **“Approved Contract Value”** (or **“Revenue”**) means the total selling price of a customer engagement as approved by MMG management, as increased or decreased only by an approved change order.
2. **“Approved Pricing Worksheet”** means MMG's internal worksheet for each proposal, prepared before it goes to the customer, showing the Approved Contract Value, the direct delivery costs (MMG and approved subcontractor/freelancer labor specifically budgeted to the engagement — excluding all overhead and G&A), the resulting **Gross Margin %**, and the Margin Integrity Approval below.

3. **“Margin Integrity Approval”** means **Bill Gusmano's** (or his written designee's) written approval of the Gross Margin % on the Approved Pricing Worksheet, obtained **before** the proposal is sent to the customer and before the Commission Rate is agreed. No commission accrues without it.
4. **“Named and Approved Account”** means a customer account, or a defined portion of one, that the Sales Representative has requested in writing and MMG has approved in writing as commissionable (Exhibit B). MMG may grant, deny, scope, or revoke any approval in its sole discretion. Every account not on this list — and every unapproved portion of a listed account — is non-commissionable by default; no further action by MMG is required to keep it that way. Commissions are earned **only** on Named and Approved Account engagements.
5. **“Term”** means September 1, 2026 through December 31, 2026. This Agreement does not renew automatically; continuing past that date requires a new written agreement.
6. **“MMG IP”** means MMG's methodologies, frameworks, templates, tools, pricing models, training content, playbooks, and software, whether created before or during the Term, including anything the Sales Representative contributes to or improves while performing under this Agreement. **“Customer IP”** means any data, content, or confidential information of an MMG customer or prospect that the Sales Representative accesses in the course of this work. Both remain MMG's or the customer's property, respectively — see Section 5.
7. **“Competing Business”** means any business, employment, or consulting role — paid or unpaid, in any capacity — that provides services materially similar to MMG's (learning and development, training content, instructional design, or related consulting) to any business customer or prospect.

2. Term and Commission

1. **Term.** This Agreement runs for the fixed Term defined above — no tiers, no stair-steps, no cumulative-revenue thresholds. Any continuation past December 31, 2026 requires a new written agreement.
2. **Flat rate.** Commission is a flat **12% of Approved Contract Value (Revenue)** on every Named and Approved Account engagement approved during the Term.
3. **Margin Integrity Approval required.** No commission accrues, and no Commission Rate is agreed, on any engagement until Bill Gusmano (or his written designee) has reviewed and approved the Gross Margin % in writing, before the proposal is sent to the customer.

4. **Below 30% margin — 60/40 Gross Profit split.** If the Approved Pricing Worksheet shows a Gross Margin % below 30%, commission is instead **40% of the engagement's Gross Profit** (Approved Contract Value less direct delivery costs), with MMG keeping the remaining 60%. Example: a $100,000 quote at 25% margin has $25,000 Gross Profit, so commission is 40% × $25,000 = $10,000. This scales with how thin the margin is — it is not a flat penalty.
5. The applicable rate or split is fixed at Margin Integrity Approval and stated on the Approved Pricing Worksheet. Actual project profitability, cost overruns, or write-offs after approval have no effect on commission. A change order that changes the Approved Contract Value or delivery costs requires a new Approved Pricing Worksheet and Margin Integrity Approval, applied prospectively.

Item	Amount
Approved Contract Value	$100,000
Gross Margin %	45%
Commission (flat rate)	**12% × $100,000 = $12,000**

3. Exclusivity — No Competing Business

1. The Sales Representative may hold a primary job elsewhere during the Term — this is a secondary, part-time role — **provided that job is not a Competing Business**. Regardless of which job is "primary," the Sales Representative may not, directly or indirectly, own, work for, consult for, or otherwise assist any Competing Business, in any capacity, paid or unpaid, while this Agreement is in effect.
2. For twelve (12) months after the Term ends, the Sales Representative shall not solicit — on behalf of a Competing Business — any customer or prospect encountered through this Agreement, nor solicit any MMG employee or contractor to leave or join a Competing Business.
3. The Sales Representative shall promptly notify MMG in writing of any new job, consulting arrangement, or business ownership taken on during the Term, so MMG can confirm it isn't a Competing Business.
4. Breach of this Section 3 is grounds for immediate termination and forfeiture of any unpaid commission, in addition to any other remedy available to MMG.

4. Confidentiality and IP

MMG IP and Customer IP remain MMG's or the customer's property; nothing here transfers any ownership to the Sales Representative, and any improvement the Sales Representative contributes to MMG IP is owned by MMG. The Sales Representative shall keep all MMG IP, Customer IP, and other non-public MMG information (pricing, cost structures, margin data, commission terms, customer lists, deal terms) confidential, use it solely to perform this Agreement, never disclose or use it for any other employer or business — including any future employer — and return or destroy all of it on termination or MMG's request. This obligation survives termination indefinitely for trade secrets and for three (3) years for other confidential information.

5. Job Responsibilities — Business Development & Account Management

The role is Business Development and Account Management — **not** operational delivery (project execution, staffing, production). Typical responsibilities, editable before execution: pipeline reporting and forecasting; quote creation and shepherding through Margin Integrity Approval; client relationship management; new business development within Named and Approved Accounts; change-order coordination; account planning; and attending relevant business events and tradeshows. Kickoff calls and ongoing customer-satisfaction monitoring are included as the two operational-adjacent items that typically travel with this role.

6. Payment and Termination

1. **Earning and payment.** Commission is earned proportionally as customer payments (net of refunds/chargebacks) are received by MMG, and paid by the last day of the following calendar month. Refunded or charged-back amounts are offset against future commissions.
2. **Termination.** Either Party may terminate at any time, with or without cause, on written notice. After termination, commission remains payable only on engagements with an Approved Pricing Worksheet and Margin Integrity Approval dated before the termination date, and only on payments MMG receives within ninety (90) days after that date.
3. **Records.** The Approved Pricing Worksheet is the conclusive record of the commission basis for each engagement. The Sales Representative must raise any dispute over a commission statement in writing within sixty (60) days; disputes not raised in time are deemed accepted.

7. General

1. Governed by Arizona law; venue in Maricopa County, Arizona.
2. This Agreement, with its Exhibits and any Approved Pricing Worksheets, is the entire agreement between the Parties on sales commissions and supersedes any prior commission arrangement. Amendments require a signed writing; MMG may change the flat rate or 30% margin threshold prospectively on thirty (30) days' written notice.
3. If any provision is unenforceable, the rest remains in effect. The Sales Representative may not assign this Agreement without MMG's written consent. Electronic signatures and counterparts are valid.

Exhibit A — Approved Pricing Worksheet (Template)

Field	Entry
Customer / Engagement	
Approved Contract Value (Revenue)	$
Direct delivery costs (MMG + approved subcontractor labor)	$
Gross Margin %	**%**
Margin Integrity Approval (Bill Gusmano or designee — signature & date; required before rate is agreed)	
Basis applied (Flat 12% of Revenue §2.2, or 40% of Gross Profit §2.4 if margin < 30%)	
Applicable rate / split	%
Commission at approval	$

Exhibit B — Named and Approved Accounts

Accounts (or scoped portions of accounts) requested by the Sales Representative and approved in writing by MMG as commissionable. Anything not listed here is non-commissionable by default.

Named and Approved Account	Approved scope	Approval date

MMG Global LLC
d/b/a The Motivated Mind Group

Signature

Name: William J. Gusmano · Title: Co-Founder & CEO

Date

Sales Representative
Jeff Gibbs

Signature

Name: Jeff Gibbs · Title: CRO

Date

Simplified template — not legal advice. Have counsel review before execution, particularly Sections 3 (exclusivity) and 4 (IP/confidentiality).